

25NNCV03653 25NNCV03653

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Department: X

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Case Number: 25NNCV03653 Hearing Date: September 1, 2026 Dept: X

#20 - AMERICAN EXPRESS NATIONAL BANK vs AIDA SHORVOGLIAN, et al.

Summary judgment is GRANTED for \$247,539.84 and recoverable costs, without additional prejudgment interest. Plaintiff has not established a separate amount of additional prejudgment interest beyond the balance owed.

Plaintiff has adequately authenticated the Cardmember Agreement and account statements for purposes of this motion. The declaration identifies the records, explains how and when they were created, describes their maintenance in the ordinary course of business, and addresses the reliability of American Express's computerized systems.

The evidence

establishes a written Cardmember Agreement governing the account, Defendants' acceptance through use of the account, and Plaintiff's extension of credit. A credit-card collection action based on the cardholder's contractual obligation to pay is properly treated as an action for breach of the cardmember agreement. (See Professional Collection Consultants v. Lauron (2017) 8 Cal.App.5th 958, 971.)

The Agreement

requires payment of all charges and makes the Basic Cardmember and Company jointly and severally liable. Plaintiff's records establish that Defendants used the account, failed to make the required payments, and defaulted. Those records further establish that, after all payments and credits were applied, \$247,539.84 remained due as of May 15, 2026.

Plaintiff has

therefore established the contract, its performance, Defendants' breach, and resulting damages. Plaintiff has met its initial burden.

There is no

opposition filed. No evidence presented raises a triable issue concerning those

elements.

Judgment shall be entered against Defendants Aida Shorvoghlian and Double ARSV LLC, jointly and severally, for \$247,539.84, plus recoverable court costs. The Court will sign the proposed judgment submitted with the moving papers.

On its own motion, the trial and FSC dates are advanced and vacated.

Moving Party is to give notice.